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MOTION TO QUASH

The Court

tenders the following tentative decision in the matter O.A., et al. v.

Jessica Devita, Los Angeles County Superior Court case number 24STCV07875,

set for hearing on July 7, 2026. O.A., J.A., and M.A. (collectively, Plaintiffs)

move for an order quashing third party subpoenas for the production of business

records served on the following parties by Jessica Devita (Defendant) pursuant

to Code of Civil Procedure sections 1985.3 and 1987.1: (1) Santa Monica Malibu

Unified School District (SMMUSD); (2) Fusion Academy (Fusion); (3) Dr. Anshu

Batra; (4) Joseph Taravella, Ph.D.; (5) Dr. Richard Boles; (7) Dr. Lev Gottlieb;

(8) UCLA Health Systems – M.R.; (9) UCLA Health Systems – Billing; (10) UCLA

Health Systems – Radiology; (11) Dr. Manny Tau, Psy. D.; (12) Westside Regional

Center (WRC); (13) Beyond Karate (BK); (14) Lagerlof, LLP; (15) Denis A. Perez,

LCSW; (16) Sinclair Broadcasting Group C/O Ct Corp. (Sinclair); and (17) Univision

Emerging Networks, LLC C/O CT Corp. (Univision). Defendant opposes the motion. The

motion is granted in part.

A.

Legal Standard

“If a subpoena requires the

attendance of a witness or the production of books, documents, electronically

stored information, or other things . . . at the taking of a deposition, the

court, upon motion reasonably made by any person described in subdivision (b) .

. . . may make an order quashing the subpoena entirely, modifying it, or

directing compliance with it upon those terms or conditions as the court shall

declare, including protective orders. In addition, the court may make any other

order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subd. (a).) Any party to the action may make such a motion. (Id., § 1987.1, subd. (b)(1).) “Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production.” (Id., § 1985.3, subd. (g).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.” (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 639 (Los Angeles).) There is a “more limited scope of discovery available from nonparties.” (Ibid.)

“In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

B. Discussion

Plaintiffs move to quash or reduce the scope of deposition subpoenas served on various third parties by Defendant pursuant to Code of Civil Procedure section 1985.3, subdivision (g). These subpoenas seek educational and medical records related to O.A., medical records related to J.A., and employment records related to M.A. The Court will address each category of subpoenas in turn.

First, Defendant has subpoenaed SMMUSD and Fusion for all education records related to O.A.'s time as a student. These include his academic record, special education records, records related to his disability, attendance records, documents related to any investigation of O.A.'s conduct, documents in his disciplinary file, documents related to his appeal of his suspension, and documents related to hearings, meetings, and phone calls. (Exs. 1, 2.) Defendant argues that these records are relevant because Plaintiffs have put O.A.'s school history and conduct at issue by alleging that he was well behaved.

Plaintiffs object to this request on the grounds that O.A.'s privacy rights are implicated. (Cal. Const., Art. 1.) A party asserting a privacy right must "establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 (Williams).) The party seeking information may then "raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy." (Ibid.) The Court then balances those competing considerations. (Ibid.)

Here, O.A.'s privacy rights are implicated by Defendant's desired intrusion into his educational records. Defendant seeks to demonstrate that Defendant did not know her statements were false or defamatory based on evidence of O.A.'s reputation at school. But information about O.A.'s reputation at school more generally will not shed light on what Defendant knew about O.A. at the time she made her statements. Thus, the only relevant records are those relating to Plaintiff's interactions with M.S. specifically, as such evidence will help determine the truthfulness of Defendant's publications. Accordingly, the Court modifies the SMMUSD subpoena to only seek items 6 and 14 related to O.A.'s interactions with M.S. (Ex. 1.) It additionally modifies the Fusion subpoena to only seek items 7, 15, and 16 related to O.A.'s interactions with M.S. and his tuition payments, which he has put at issue by claiming them as damages.

Second, Defendant has subpoenaed (1) Dr. Anshu Batra; (2) Dr. Joseph Taravella, Ph.D.; (3) Dr. Ruth Ziemba; (4) Dr. Richard Boles; (5) UCLA Health Systems – M.R.; (6) UCLA Health Systems Billing;

and (7) UCLA Health Systems Radiology for O.A.'s medical records. These subpoenas seek all medical records, correspondences, test results, and billing documents from the various healthcare providers. (Exs. 3–6, 8–10.) Defendant argues that these records are relevant because Plaintiffs have alleged that they treated O.A. and provide a basis for his medical damages. Once again, O.A.'s right to privacy is invoked because of the sensitive nature of these medical records. The Court agrees with Defendant that an important countervailing interest exists here, where Plaintiffs have put these records at issue by claiming damages. The Court also notes that the federal court in the concurrent action allowed for discovery of the same documents spanning from 2018 to the present. Although the federal court records are so heavily redacted as to be almost meaningless, the Court accepts the representation that these same documents were ordered produced in that case. If they have already been produced then any privacy concerns are lessened substantially.

The Court finds the federal court conclusion reasonable, and modifies the present subpoena to apply to all documents listed in the relevant subpoenas but spanning from 2018 rather than 2016 to the present.

Third, Plaintiffs move to quash

the subpoenas of Dr. Gottlieb and Dr. Tau, as they seek premature expert discovery. (Exs. 7, 11.) Indeed, these are Plaintiffs' retained experts. And expert witness information is properly obtained via Code of Civil Procedure section 2034.210. Thus, the present subpoenas are premature and quashed.

Fourth, Defendant has subpoenaed

WRC seeking all documents related to services it provided O.A. (Ex. 12.) Defendant notes that Plaintiff has used WRC to demonstrate O.A.'s cognitive, developmental, and physical condition. However, the records at issue are private documents related to the provision of disability services. Defendant may still obtain some information based on O.A.'s alleged damages arising out of him no longer being able to attend WRC. Thus, consistent with the federal court, this Court finds the subpoena proper. Thus, Plaintiff's motion to quash with respect to WRC is denied.

Fifth, Defendant has subpoenaed BK

seeking his employment records and records related to his behavior while attending classes there. Similarly to the SMMUSD and Fusion subpoenas, O.A.'s behavior and reputation prior to Defendant's statements is not relevant to show what she knew about him. But Plaintiff's employment records are still properly sought based on his damages stemming from loss of employment at BK. Thus, the

subpoena is modified to only encompass request 1. (Ex. 13.)

Sixth, Defendant's subpoena to

Lagarlof, LLP for O.A.'s conservatorship records is improper, as such records are confidential. Defendant makes no argument in support of this subpoena, and it is quashed. (Ex. 14.)

Seventh, Defendant's subpoena to Denis

A. Perez, LCSW is improper because J.A. has not put his medical files at issue. (Ex. 15.) He is only seeking "garden variety" emotional distress damages (which the Court understands means general emotional distress but not evidence of treatment or diagnosis by medical doctors or other professionals). and will not offer evidence from any physicians at trial. Thus, the documents sought by Defendant are not relevant. Accordingly, the subpoena is quashed.

Eighth, Defendant seeks the

employment records of M.A. from Sinclair and Univision. (Exs. 16, 17.) While individuals have a protected privacy interest in their employment records, here M.A. has placed his at issue by claiming damages for lost bonuses, poor performance reviews, and lost pay. (See Board of Trustees of Leland Stanford Jr. University v. Superior Court (Dong) (1981) 119 Cal.App.3d 516, 528–530.) Thus, the subpoenas are proper and the motion to quash is denied.

Conclusion:

The Court (1)

modifies the SMMUSD subpoena to only include requests 6 and 14; (2) modifies the Fusion subpoena to only include items 7, 15, and 16; (3) modifies subpoenas 3–6 and 8–10 to apply to the period from 2018 to the present; (4) quashes subpoenas 7, 11, 14, and 15; (5) denies Plaintiffs' motion to quash with respect to subpoenas 12, 16, and 17; and (6) modifies subpoena 13 to only encompass request 1.

ADDITIONAL MOTIONS

The Court

tenders the following tentative decision in the matter O. A., et al. v.

Jessica DeVita, Los Angeles County Superior Court case number 24STCV07875, set for hearing on July 23, 2026. O.A., J.A., and M.A. (collectively, Plaintiffs) move for a protective order for the deposition of O.A. by Jessica

DeVita (Defendant). Plaintiffs also move to seal additional records submitted in opposition to the continued motion for summary judgment. Separately, Defendant moves for a protective order canceling the deposition of M.S. The Court grants all motions.

A.

Plaintiffs' motion to seal is granted.

Plaintiffs move for the sealing of certain additional documents filed in support of their further opposition to Defendant's motion for summary judgment. Pursuant to California Rule of Court, rule 2.550(d), the court may order that a record be sealed if it finds facts that establish the following: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. The burden of showing there are less restrictive means of achieving the overriding interest lies with one who is seeking disclosure of the allegedly confidential information. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1224.)

A "reasoned decision about sealing or unsealing records cannot be made without . . . (1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations. The burden of presenting information sufficient to accomplish the first two steps is logically placed on the party seeking the sealing of the documents, who is presumptively in the best position to know what disclosures will harm and how." (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.)

Plaintiffs filed the present motion to seal to protect certain materials from the public record, including records of juvenile court proceedings. There is an overriding interest in safeguarding the confidentiality of a minor's records to prevent collateral consequences. (T.N.G. v. Superior Court (1971) 4 Cal.3d 767, 776.) This interest supports sealing the designated materials. There is a substantial probability that disclosure of the records in question would prejudice Plaintiffs, as they contain identifying information about a minor and their sensitive juvenile court records. The sealing request is narrowly tailored and applies to only

specific documents containing the relevant information. No less restrictive means exist of protecting the information. Thus, Plaintiffs have satisfied every requirement of rule 2.550(d). Accordingly, Plaintiffs' unopposed motion to seal is granted.

B.

Plaintiffs' motion for a protective order is granted.

Plaintiffs

seek a protective order providing O.A. certain medical accommodations for his upcoming deposition, including the following: (1) that he may select the location; (2) that he may be accompanied by his parents, physicians, and counsel; (3) that counsel will avoid repetitive questions if he cannot remember; (4) that the deposition may not exceed 4 hours with breaks that may be taken as needed; and (5) that only one attorney may question O.A. and may not raise their voice or agitate him.

Code of Civil Procedure section 2031.060 provides that

"[t]he court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2031.060, subd. (a).) The motion "shall be accompanied by a meet and confer declaration under Section 2016.040." (Ibid.) Similarly, the responding party may move for protective orders regarding interrogatories and requests for admission. (Code Civ. Proc., §§ 2030.090, 2033.080.)

The protective order may include one or more of the following

directions: (1) that all or some items or categories in the demand need not be produced at all; (2) that the time to respond to a set of demands be extended; (3) that the place of production be changed; (4) that the inspection, copying, testing, or sampling be made under specified terms and conditions; (5) that a trade secret or other confidential information not be disclosed, or disclosed only in a certain way to certain people; or (6) that the items produced be sealed and only opened after a court order. (Id., § 2031.060, subd. (b).)

Code of Civil Procedure section 2017.020, subd. (a),

provides that "[t]he

court shall limit the scope of discovery if it determines that the burden,

expense, intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” Additionally, the court shall restrict the frequency or extent of the use of a discovery method if it determines either of the following:

1. The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive.¿
2. The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.¿¿

(Code Civ. Proc.,¿§ 2019.030, subd. (a).)

Here, O.A. suffers from a rare genetic medical condition that makes participation in legal proceedings potentially damaging. This creates a greater risk that the taking of his deposition will result in unwarranted annoyance, embarrassment, or oppression. Indeed, the Court finds that given O.A.’s condition, a protective order is proper. They have demonstrated good cause in that the lack of the suggested protections could prove harmful to O.A. Defendant argues against the application of the fourth protection, which would limit the deposition to 4 hours. With the breaks also allowed for under that proposed protection, Defendant’s time for deposing O.A. would be severely limited. The same protection for O.A. can be achieved by splitting the deposition into two sessions on separate days, each not exceeding 4 hours. Defendant also argues that the third restriction would limit the scope of her questioning, but that provision would only limit the use of repetitive questions. Thus, the Court finds the proposed protective order warranted and proper but amends the fourth protection to allow for 2 separate sessions not exceeding 4 hours with breaks. Accordingly, Plaintiffs’ motion for a protective order is granted with that edit to the 4th protection.

C.
Defendant’s motion for a protective order is granted.

Defendant seeks a protective order postponing the deposition of M.S. until proper medical accommodations are provided. M.S. suffers from autism and is intellectually disabled. Thus, similarly to O.A., a deposition will be potentially harmful to him. Defendant seeks protections

similar to those afforded O.A. under the Plaintiffs' protective order. In the interest of fairness, the Court grants those exact same protections in the deposition of M.S. However, the Court does not make any particular order as to when the depositions must take place in relation to one another. Accordingly, Defendant's motion is granted in part: M.S.'s deposition will go forward, but the same protections applied to the deposition of O.A. as discussed above will be applied to the taking of M.S.'s deposition as well.

Conclusion:

The motions are granted in part. Plaintiffs' requested documents are sealed. With respect to the depositions of O.A. and M.S., the following restrictions apply: (1) the deponent may select the location; (2) he may be accompanied by his parents, physicians, and counsel; (3) deposing counsel will avoid repetitive questions if the deponent cannot remember; (4) the deposition may not exceed the usual 7 hours with breaks that may be taken as needed, but must be split over two sessions neither of which may exceed 4 hours; and (5) only one attorney may question the deponent and may not raise their voice or agitate him.